

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ARGENTINA

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Argentina. The country's most famous environmental victory did not come from a court or a minister — it came from a small Patagonian town that organised, informed itself, and voted. On 23 March 2003, the people of **Esquel**, in Chubut, held a plebiscite on the Canadian company Meridian Gold's plan to open a cyanide-leach gold mine six kilometres from the city. **Eighty-one per cent voted "No a la Mina."** The town council declared Esquel a non-toxic municipality, and within months the provincial legislature passed **Law 5001**, banning open-pit metal mining with cyanide across all of Chubut — the first such law in Argentina. A community with no money and no power stopped a multinational's mine and changed provincial law, and it did so by organising in neighbourhood assemblies, walking door to door, and refusing to be told the decision had already been made.

Esquel was not a one-off. It birthed a movement — the socio-environmental assemblies (*asambleas*) that spread across the Andean provinces and joined into the national **Unión de Asambleas Ciudadanas**, a network of a hundred communities that give each other strength. And it showed the pattern that wins in Argentina: inform the community, organise it into assemblies that last, use every legal and political lever, and make the fight impossible to ignore. When, in December 2021, the Chubut legislature tried to gut Law 5001 with a mining "zonification," the province erupted; after days of mass protest — the **"Chubutazo"** — the legislature repealed its own law within days. The threat never fully leaves, but neither does the power that beat it.

Most communities, though, do not know HOW to make opposition effective. They attend one hearing and go home. They assume the province "will approve it anyway," and so they never file an amparo, never demand the environmental study, never build the assembly and the public pressure that change a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Argentine system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise assemblies that last)
STEP 4: LEGAL CHALLENGES	(amparo, precautionary principle, provincial bans)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the assembly sustains the pressure the courts and politicians respond to; a lawsuit is a headline and a headline strengthens a lawsuit. The community that runs all five together, each reinforcing the others, is the one that wins. Esquel did exactly this — it informed itself with independent experts, organised assemblies, pursued the plebiscite and the law, and made its fight a national and international story, all at once.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Argentina's give communities a distinctive set:

- **The citizens' assembly.** Argentina has a real, living tradition of *asambleas socioambientales* — self-organised neighbourhood assemblies that carry a fight for years and link nationally through the UAC. This is an organising lever few countries can match, and it is how Esquel and dozens of towns since have won.
- **Provincial power over resources.** The Constitution (Article 124) gives the provinces original ownership of their natural resources, which means a **province can ban a whole class of mining** — as Chubut, Mendoza, and others

have. A community that cannot beat a single project can sometimes win a provincial law that stops all of them.

- **The amparo ambiental.** Article 43 of the Constitution and the General Environmental Law give anyone a fast action to stop environmental harm, with broad standing — the affected, environmental associations, and the Ombudsman can all bring it.
- **The precautionary principle in statute.** The General Environmental Law (25.675) writes the precautionary principle into national law: where grave or irreversible harm threatens, the lack of scientific certainty is no excuse for inaction — and the Supreme Court has used it to suspend permits.
- **Direct democracy.** Plebiscites, popular consultations, and popular-initiative laws let citizens decide or propose directly — the tools that gave Esquel its result.
- **Public hearings and glaciers.** The mandatory public hearing (*audiencia pública*) in environmental assessment is a real entry point, and the national Glacier Law bars mining on glaciers and periglacial areas — a hard line across the cordillera.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. Argentine federalism cuts both ways: a province that wants a project — and several live off mining, oil, and now lithium — can push it as hard as Chubut resisted one. Provincial bans are fragile; Law 5001 itself contains a loophole its authors have fought off attackers over for twenty years, and the national and several provincial governments today actively promote extraction. Enforcement is uneven, public hearings are often non-binding, and Indigenous consultation is too frequently a formality. Protesters have faced repression in mining towns like Andalgalá and Famatina. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright, permanent stop is not realistic, how to secure the delay, the exposure, the provincial line held, and the worn-down proponent that, in a hard fight, are what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single afternoon, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

An Argentine development project runs a gauntlet of approvals, and each is a place to intervene.

Provincial. This is the decisive level for most extractive and land-use projects. Because the provinces own their natural resources, it is the **provincial authorities** — the mining or environment secretariat — that grant the concession, approve the environmental-impact study (*Estudio de Impacto Ambiental*), and issue the environmental authorisation. It is also the provincial **legislature** that can pass — or repeal — a mining ban. The province is where Esquel's fight was won and is repeatedly refought.

Municipal. The **municipality** controls land use, local permits, and its own ordinances, and can declare itself non-toxic, call a local plebiscite, or refuse a permit — as Esquel's council did. The municipal level is close, responsive, and often where a campaign first bites.

National. The Nation sets the "minimum environmental standards" (*presupuestos mínimos*) that all provinces must meet — the General Environmental Law, the Glacier Law, the native-forests law, the environmental-information law — and runs federal permitting for some projects and cross-provincial matters. National law is a floor the province cannot go below, and a lever when a province tries.

Indigenous territories. Cutting across these: where a project affects an **Indigenous people's territory**, their right to prior, free, and informed consultation applies, under ILO Convention 169 (Argentine law 24.071) and Article 75(17) of the Constitution — a right that, at Esquel, began with a Mapuche community's denunciation of intrusion onto its land.

The Journey of a Project

A typical project moves from concession, to an environmental-impact study, to a **public hearing (audiencia pública)**, to the environmental authorisation and its conditions, through any required consultation, to local land-use and water permits, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: an objection to the study, a demand that it address a risk it ignored, evidence entered at the public hearing. The later doors — an amparo against the authorisation, a push for a provincial ban, a plebiscite — are more demanding but real, and communities walk through them and win. Find out exactly where your project stands on this path

today; that tells you which door is open now.

Follow the Money and the Province

Behind the permits stand a proponent, its financiers, its buyers, and the provincial officials who signed off. A mining firm is often the subsidiary of a listed foreign company — Meridian, at Esquel, was Canadian, and the project later passed to Yamana — answerable to shareholders, lenders, and markets a reputational blow can reach. Trace who owns the proponent, who funds it, who buys its output, and which officials and which province granted its permits. Two questions unlock most Argentine fights: **Did the province follow its own and the national rules — the study, the hearing, the standards?** and **Who in the province benefits from pretending it did?** Mapping the chain also tells you where the project is vulnerable that the province is not: a listed parent answers to a stock exchange and to lenders with environmental and social standards; a buyer with a public reputation does not want to be named alongside a contested mine; a financier can be asked, in writing and in the press, whether it knew the process was defective. These are pressure points a hostile provincial official does not control.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **Defensor del Pueblo** (national and provincial) can bring an environmental amparo in its own right and defends affected communities. The courts — provincial, federal, and ultimately the **Supreme Court (CSJN)**, which has ordered basin-wide cleanups and suspended permits on precautionary grounds — enforce the Constitution and the environmental laws. The **Auditoría** bodies check public money. And the **Escazú Agreement**, which Argentina ratified and made binding, obliges the State to guarantee environmental information, participation, and justice, and to protect defenders. Argentina ratified Escazú through Law 27.566, making it binding domestic law; it is the first international treaty in the world with specific provisions to protect environmental human-rights defenders, and for a community whose leaders face threats that protection is not abstract — it is a standard the State can be held to, and a frame that draws international eyes to any reprisal. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. The national and provincial audit bodies (the *Auditoría*) can examine how public money and public decisions were handled around a project, and their findings carry official weight; the prosecutorial bodies can open inquiries where the facts suggest wrongdoing. You do not have to choose one door — the same documented file can be sent to the courts, the Ombudsman, the auditors, and the press together, and each that acts makes the others harder to ignore.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Argentine and comparable campaigns tend to go, not a controlled study. The decisive variables are whether your province is hostile or persuadable, whether a provincial ban is within reach, whether the environmental study and hearing have real defects, whether glaciers or an Indigenous territory are involved, and whether the public can be mobilised and the world made to watch. Where the province is winnable and the community organises, Argentina's levers are strong; where a pro-mining province champions the project, discount the figures and think in terms of the provincial line held, delay, exposure, and outside pressure. Use the table to plan, not to predict: it tells you which combinations of levers have historically done the most work, and where to put your scarce time first. The single most important reading of it is that no row on its own is as strong as the rows run together — the community that documents, organises, litigates, and publicises at once consistently outperforms the one that pins its hopes on any single move.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Objection + public hearing (audiencia pública)	15-35%	during review	low	On record; conditions or a redo
Amparo ambiental (courts)	30-50%	6-30 months	low-moderate	Activity suspended; authorisation reviewed
Precautionary measure (medida cautelar)	30-50%	weeks-months	low-moderate	Project frozen while the case runs
Municipal action (ordinance / non-toxic declaration)	25-45%	3-18 months	low	Local block; political weight

Provincial ban / law	20-45%	12-48 months	moderate	Whole class of mining prohibited
Plebiscite / popular consultation	25-50%	12-36 months	moderate	Binding or decisive local verdict
Indigenous consultation (ILO 169)	25-50%	ongoing	low	No lawful process; project stalled
Glacier Law / protected-area defence	30-50%	6-30 months	low-moderate	Project barred from closed ground
Defensor del Pueblo / CSJN route	20-45%	12-48 months	low	Findings; suspension; precedent
International attention / financier pressure	25-50%	6-48 months	low	Reputational pressure; proponent falters
All steps combined (persuadable province)	45-65%	12-36 months	low-moderate	Stalled, delayed, banned, or forced to change
All steps combined (pro-mining province)	25-45%	12-48 months	low-moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Argentina's real strengths are distinctive — a living **assembly movement** with a national network, **provinces that can ban a whole class of mining**, the fast **amparo ambiental** with broad standing, a **precautionary principle** written into national law and used by the Supreme Court, **direct-democracy tools** that gave Esquel its win, a mandatory **public hearing**, a **Glacier Law** that closes the high cordillera, and a **free, combative press**. Its constraints are a **federalism that lets pro-extraction provinces push hard**, **fragile provincial bans**, **often non-binding hearings**, **weak enforcement**, and **repression in some mining towns**.

A note on cost: informing the community, documenting, organising assemblies, and filing an amparo are inexpensive, and public-interest lawyers, the assemblies' own networks, and the Ombudsman have carried community cases. A provincial ban or a plebiscite is more demanding, needing a sustained province-wide campaign. The expenditure that most changes outcomes is committed legal support and the reach of the media and assembly campaign — exactly what Esquel marshalled.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, banned, forced to change, or stopped)

PERSUADABLE PROVINCE -- winnable politics, real defects, community organised:

All steps combined:	45-65%
Amparo + precautionary:	30-50%
Provincial ban / plebiscite:	the decisive local levers
Glacier / protected ground:	30-50%
Single step:	5-50%

PRO-MINING PROVINCE -- province champions it, enforcement weak:

All steps combined:	25-45%
Assembly + amparo + exposure:	the strongest combination
Delay / hearing defect:	more achievable than an outright stop
Single step:	5-35%

How to read this honestly. The levers that most change outcomes in Argentina are **the organised assembly and the provincial ban**, reinforced by the amparo, the precautionary principle, direct democracy, the Glacier Law, and public and international pressure. Esquel shows the ceiling: an informed, organised community won a plebiscite and a provincial law that has held, with fights, for two decades. The floor is set by pro-extraction provinces and the fragility of even a famous ban. Most Argentine fights sit between them, and the honest lesson is that the assembly, the province, and the courts are powerful levers — but against a project a province champions, the realistic win is often the provincial line held, delay, exposure, and a proponent worn down, as much as an outright, permanent stop.

Step Importance Ranking (When All Combined)

1. **The organised assembly** — Argentina's distinctive engine; the informed, lasting community that carries every other lever, as it did at Esquel.
2. **Provincial power** — the ban, the plebiscite, the municipal ordinance; the levers that stop not one project but a class of them.
3. **The amparo and the precautionary principle** — the fast court action and the statutory principle that freeze a project and force review.
4. **The closed ground and consultation** — the Glacier Law, protected areas, and Indigenous consultation a project cannot lawfully override.

5. **Public and international pressure** — the press, the national assembly network, and the financier exposure that raise the cost of proceeding.

What Argentine Campaigns Actually Show

A few patterns recur. **An organised town can beat a multinational** — Esquel did, at the ballot. **A province can ban mining** — Chubut and Mendoza did, and communities defend those laws fiercely. **The assembly endures** — the *asambleas* and the UAC have carried fights for twenty years. **The amparo and precautionary principle bite** — courts have suspended projects and permits. **Closed ground stays closed** — the Glacier Law bars the high cordillera. **The people can be asked directly** — a plebiscite decided Esquel. **But federalism cuts both ways**, pro-extraction provinces push hard, and even famous bans are attacked again and again. The through-line: **inform and organise the community; prove every defect and harm; use the municipality, the province, the courts, and the vote; defend the provincial line; reach the world — and expect a long, recurring fight measured in the line held, delay, and exposure as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the provincial environmental authorisation granted on a study that ignored the town's water, without a genuine public hearing, for a project the Glacier Law and a provincial ban may prohibit" is a case. Answer five questions.

The Five Core Questions

- 1. What exactly is proposed, and under what permit?** Name the project, the proponent, and the specific approval it needs or holds — the mining concession, the environmental-impact study and its authorisation, the water permit. Each instrument has conditions and a paper trail, and each is a place a defect hides.
- 2. What stage is it at?** Concession granted? Study under review? Public hearing held or pending? Authorisation issued? Under construction? The stage dictates the door. If the study is under review, your objection and your evidence at the hearing are cheap and powerful. If it is authorised, an amparo and a precautionary measure may be the route.
- 3. Which province, and is it winnable — or bannable?** This is the pivotal Argentine question. Identify the province, its stance, and whether a **provincial ban** on this class of mining already exists (which may make the project illegal outright) or is within reach. The province is where the decisive power sits.
- 4. Is the ground closed or specially protected?** Is the project on or near a **glacier or periglacial area** (barred by national law), a protected area, a native forest, or a watershed — or on an **Indigenous territory** whose consultation is required? Closed ground can defeat a project on the documents alone.
- 5. Who decides, who benefits, and who is watching?** Which provincial officials and body granted the permits; who owns and funds the proponent and buys its output; which municipality's land use and which community's consultation are engaged; and which press, assemblies, and national or international allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a company proposes an open-pit metal mine on a mountain that feeds a town's water, in a province with no ban, and it has an approved environmental study and authorisation.

Working the five questions: the project needs a **provincial environmental authorisation** (obtained — request it, the study, and the hearing record), a **concession**, and **water and land-use permits**. It is **authorised**, so an amparo with a precautionary measure is the live route. The province has **no ban** — so a provincial-ban campaign and, at the municipal level, an ordinance or plebiscite become strategic goals. The mountain and the water raise the **precautionary principle**, and a nearby **glacier or protected area** may close ground. The **municipality and any Indigenous community** are engaged, and the water gives a **media and assembly** hook.

Within an afternoon you have moved from "we oppose the mine" to a target list: request and scrutinise the study, authorisation, and hearing record; file an amparo on the precautionary principle and the study's defects, with a precautionary measure; check glacier, protected-area, and watershed status; assert any Indigenous consultation; build the municipal ordinance and a provincial-ban push; and prepare the water story for the press and the assembly. That is a

campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks, each tied to a specific lever and a specific audience, and each of which can begin this week. That is the difference the five questions make — they turn "someone should do something" into "these six things, by these people, starting now."

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A judge, the Ombudsman, a journalist, and a company's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Request the **environmental-impact study and its authorisation and conditions**; the **public-hearing record** (who spoke, what was raised, how it was answered); the **mining concession**; the **water permit**; and any consultation records. Argentina's **environmental-information law (25.831)** and the constitutional right to information make these obtainable, and the gap between what they promise and what is happening on the ground is where cases are won. Esquel's community forced the project into the open precisely by informing itself — bringing in independent experts to read what the company would not plainly say. Read the study not only for what it claims but for what it leaves out and what it quietly concedes in an appendix or a footnote — the water consumption buried in a table, the closure plan that assumes perpetual treatment, the cumulative effects it declines to assess. The official record is written to reassure; read against the grain, it is often where the strongest objection is hiding in plain sight.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual footprint** — cleared ground, drill platforms, silted or lowered water sources — and geotag it. Log **incidents**: a spill, a fish kill, a spring gone dry, dust or sediment. Capture **before-and-after** with your own photos and with freely available satellite imagery, which can show clearing, encroachment, and the true scale of operations. Record **testimony**: elders on the land's history and use, farmers on the water and the crops, and independent technical readings where you can get them — a water sample, a hydrologist's or geologist's note. At Esquel, an independent expert's damning assessment of the project ("the worst I have read") was central to turning the town.

Layer 3: The Defects and the Closed Ground

Finally, document the failures of process and the legal lines the project crosses. Was the **environmental study deficient** — ignoring the water, the glaciers, the cumulative impact? Was the **public hearing skipped, or its objections ignored**? Does the footprint sit on or drain a **glacier or periglacial area** (barred by national law), a **protected area, a native forest, or a watershed**? Is there a **provincial ban** the project violates? Was **Indigenous consultation skipped**? Was the **precautionary principle ignored** in the face of serious risk? Each defect is a separate ground — for an objection, an amparo, a referral, or a ban campaign — and together they make a case that is hard to wave away. This is the layer that most often decides Argentine fights, because here a project that looked authorised is revealed to be violating the environmental law, the closed ground, or a provincial line the community has drawn. Work it methodically: for each requirement the law imposes — a complete study, a genuine hearing, respect for glaciers and forests and Indigenous territory, compliance with any provincial ban, application of the precautionary principle — ask whether the project actually met it, and where it did not, capture the proof. A defects file built this way is what turns an emotional objection into a legal case a judge, the Ombudsman, and a reporter can all act on.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Argentine cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Permits and Their Paper Trail

- **The environmental-impact study (EIA) and its authorisation**, with the conditions attached. Held by the **provincial environment or mining authority**. Read it for what it omits — the water, the glaciers, the cumulative

and downstream effects, the closure plan.

- **The public-hearing (audiencia pública) record** — the transcript or minutes, the objections raised, and the authority's responses. A hearing skipped, or objections never answered, is a procedural defect you can build on.
- **The mining concession**, from the provincial mining authority — its area and terms, and whether it overlaps closed ground.
- **The water permit**, from the provincial water authority — its absence or breach is a live ground, and water is the issue that most often unites a community. In the irrigated provinces of Cuyo and the north-west, water is governed through user institutions — irrigation associations and water-user consortia — that are themselves powerful allies and hold records of allocations and flows; enlisting them brings both legitimacy and evidence. Everywhere, establish where the project's water comes from and goes to, how much it will consume, and what it will discharge, because the answer is usually the fact that moves the town, the press, and the province at once.
- **Any Indigenous consultation record**, and the status of the community's territory.
- **The relevant provincial and municipal norms** — a provincial mining ban, the municipal land-use ordinance, any local non-toxic declaration or plebiscite result.

How to Get Them

Most of these are public. Use the **environmental-information law (25.831)** and the right of petition: a written request naming the documents obliges a timely answer, and the law is specifically designed to give citizens environmental information. Request at the provincial environment, mining, and water authorities and the municipality. When an authority stalls, a follow-up citing the law usually moves it; persistent refusal is itself a violation you can take to court or to the Ombudsman. Move early: the study review and the public hearing have real windows, and an objection or evidence entered while a window is open carries far more weight — and preserves far more of your rights — than the same point raised after the authorisation is signed. A practical tip: make your information requests specific and dated, keep proof of when you sent them and when (or whether) they were answered, and treat any refusal or silence not as a dead end but as a new, documentable fact — an authority that will not disclose an environmental study is itself a story and a legal problem.

The Ground Evidence

- **Dated, geotagged photographs and video** of the footprint, the clearing, the discharge, the drying water source.
- **Satellite before-and-after** from freely available imagery, to show clearing, encroachment onto closed ground, or the true extent of operations — and, near the cordillera, proximity to glaciers.
- **Independent technical readings** — a water sample, a hydrologist's or geologist's note, an independent review of the EIA. Community monitoring and university partners can supply these cheaply, and an independent expert's verdict was decisive at Esquel.
- **Maps** overlaying the project footprint on the glacier or periglacial area, the protected area or native forest, the Indigenous territory, and the watershed — a single map showing a mine draining a town's water or sitting above a glacier is worth pages of argument.
- **Sworn statements** from elders, farmers, and community and Indigenous authorities, on use, history, consultation, and harm.

Organise It So It Persuades

Keep a **master timeline** of every permit date, hearing, incident, objection, and deadline — the spine of any amparo. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a reporter, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can run for years and pass through many hands, the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE ASSEMBLIES THAT LAST

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step Argentina does best, and Esquel is its model: a community that organised into open neighbourhood **assemblies** and never disbanded.

Phase 1: The Core

Start with a small, committed core — five to fifteen people who will carry the work. Where an Indigenous community is involved, include its **legitimate authorities** from the start, because their consultation and voice are the campaign's legal and moral spine — and, as at Esquel, an Indigenous community's denunciation of intrusion may be how the whole threat comes to light. Assign roles: documentation, legal liaison, media, community liaison, and coordination. Agree on the goal — refusal, a revoked authorisation, a municipal ordinance, a provincial ban, a plebiscite — and on what you will and will not accept.

Phase 2: The Assembly and the Coalition

Then build the **open assembly** — the *asamblea* — the distinctively Argentine form: a regular, public, horizontal meeting anyone in the community can join, where information is shared and decisions are taken together. It is the engine that informs the town and sustains the fight. Widen it deliberately: farmers' and water-user associations, teachers and health workers, students, small business, the Church, and the diaspora. Reach the **allies with capacity** — public-interest lawyers, independent scientists who can read the EIA, the provincial and national **assembly networks (the UAC)**, and international allies. Esquel's assembly informed itself with outside experts, linked to a national movement, and turned a technical fight into a town's common cause — and that is precisely the spread a winning campaign needs. The national network is a real asset. The **Unión de Asambleas Ciudadanas**, born out of Esquel and the assemblies that followed, links scores of communities across the country; it shares legal templates, expert contacts, and hard-won experience, mobilises solidarity when one town is under pressure, and turns isolated local fights into a movement with a common language — "*el agua vale más que el oro*," "*No a la Mina*," "*El agua no se negocia*." A community that plugs into it is not starting from zero; it inherits twenty years of others' methods and mistakes.

A worked coalition example. Facing a mine that threatens a town's water, a handful of neighbours, a water-user association, an Indigenous community, and a few teachers form a core; they open a weekly assembly that draws hundreds; they bring in a legal-aid lawyer and an independent hydrologist; the municipal council passes an ordinance; and the UAC amplifies the fight across the province. No single group could have carried it; together they cover documentation, law, science, local legitimacy, and reach.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm — the assembly's regular meeting is itself the antidote. Give people concrete, finishable tasks. Mark small wins — an ordinance passed, a document pried loose, a hearing packed. Rotate the exhausting roles. And protect people: keep leadership collective and visible rather than resting the campaign on one exposed individual; document every threat, act of surveillance, or intimidation, which protects the person and becomes evidence; build outside links to the UAC, the Ombudsman, and national and international allies; and report threats at once. Repression has fallen on mining towns like Andalgalá and Famatina, so a campaign that protects its people is a campaign that can last — and lasting, as Esquel's two decades show, is how these fights are won. Build in the small human things that keep people together: share food, mark birthdays and anniversaries of the fight, welcome newcomers properly, and make the assembly a place people want to be, not only a duty. A movement is a community before it is a campaign, and the ones that endure are the ones whose members would show up for each other even if the project vanished tomorrow.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for hearings and council sessions. Gather signatures — for a popular-initiative law or a plebiscite. Hold peaceful, well-documented actions — marches, water forums, the *marchas* that made "*No a la Mina*" a household phrase. Other towns have written their own chapters. In **Famatina**, La Rioja, residents kept watch at the mountain road for years under the slogan "*El Famatina no se toca*," turning back one mining company after another. In **Andalgalá**, Catamarca, the community's long resistance to a large mine — its *Caminata por el Agua y la Vida* — has continued despite arrests and attacks on activists' homes. These are not only cautionary tales about repression; they are proof that sustained, visible community presence can hold a line for a decade or more. When Chubut tried to gut Law 5001 in 2021, it was mass, sustained, peaceful protest — the Chubutazo — that forced the repeal within days. The point is not spectacle; it is to demonstrate, to officials, judges, and the press, that the opposition is broad, rooted, and not going away. Choose actions that photograph and travel well and that anyone can join — a human chain along the threatened river, a signature drive in the plaza, a candlelit vigil the night before a vote — and always document them yourselves, so the size and the spirit of the turnout exist as a record even if no outlet covers it. A visibly broad, peaceful, rooted movement is the single most persuasive argument a legislator or a judge weighs.

STEP 4: LEGAL CHALLENGES — THE AMPARO, THE

PROVINCE, AND THE VOTE

Argentine law gives communities a real arsenal, and you do not need a final ruling to win with it: a filing freezes a project, forces disclosure, and creates leverage and headlines. Engage a lawyer or the Ombudsman early — but understand the tools yourself.

The Amparo Ambiental and Precautionary Measures

The core tool is the **amparo** (Article 43 of the Constitution), a fast action against any act or omission that harms a constitutional right — including the right to a healthy environment (Article 41). The **General Environmental Law (25.675)** widens it: **anyone** — the affected, environmental associations, the Ombudsman — may bring an amparo to **cease activities causing collective environmental damage**, and a judge may order **urgent precautionary measures (medidas cautelares)**, **even without hearing the other side**, to prevent harm while the case runs. This means a community can get a project **frozen quickly** and force the authorisation and study under judicial review. It is your fastest and most flexible lever.

The Precautionary Principle

The same law writes the **precautionary principle** into national law: where there is danger of grave or irreversible harm, the absence of full scientific certainty **may not be used to postpone** effective protective measures. This reverses the usual burden — the community need not prove certain harm; the risk of serious harm is enough to justify caution. The Supreme Court has applied it to **suspend permits** pending proper study, and it is the principle on which many environmental precautionary measures rest. The landmark is *Salas, Dino* (2008), in which the Supreme Court, invoking the precautionary principle, suspended deforestation and land-clearing authorisations across several departments of Salta pending a cumulative environmental-impact study — a ruling that shows a court will freeze approvals when the cumulative risk has not been honestly assessed. In the same period, in the *Mendoza* (Matanza-Riachuelo) case, the Court ordered a basin-wide clean-up and created a body to enforce it, establishing that collective environmental harm can be litigated to a binding, supervised remedy. Both are precedents you can put in front of a judge. Argue it explicitly, tied to the water, the glaciers, or the ecosystem at risk.

The Province: Bans, Ordinances, and Direct Democracy

Argentina's most powerful lever is often political and provincial. Because provinces own their resources (Article 124), a **provincial law can ban a whole class of mining** — open-pit, cyanide, or mining outright — as Chubut's Law 5001 and Mendoza's Law 7722 do. Mendoza's Law 7722, which bars the use of cyanide, mercury, sulfuric acid, and other toxic substances in mining, is instructive on both counts. In December 2019 the provincial legislature reformed it to permit those substances; within days a spontaneous, province-wide mobilisation under the banner "*el agua vale más que el oro*" — water is worth more than gold — filled the streets of Mendoza, and the governor was forced to reverse the reform and restore the ban. It is the same lesson as the Chubutazo: a provincial ban is won by a community and defended by one, again and again, and the mobilised community is what makes the law hold. A project in a banned province is simply illegal. Where no ban exists, the strategic goal becomes winning one, through the legislature, a **popular-initiative bill**, or a **plebiscite / popular consultation** — the direct-democracy tools that gave Esquel its verdict. These tools exist at every level. The national Constitution provides for a **popular initiative** (Article 39), letting citizens force a bill onto the legislature's agenda with enough signatures, and a **popular consultation** (Article 40); most provinces and municipalities have their own versions, and Esquel's was a municipal plebiscite. The **public hearing (audiencia pública)** is a further, everyday entry point: it is a formal, on-the-record stage in environmental assessment where any citizen may speak and enter evidence, and while its result is often non-binding, everything said there becomes part of the record a later amparo is built on — so a hearing packed with prepared, documented objections is never wasted, whatever the authority then decides. At the municipal level, an **ordinance** or a **non-toxic declaration** can block a project locally and build toward the provincial line. These are demanding, years-long campaigns — but they stop not one project but every project of its kind, and they are the Argentine victory that lasts.

The Closed Ground and Consultation

Two more grounds can defeat a project on the law. The **Glacier Law (26.639)** bars mining and other activities on glaciers and periglacial areas across the cordillera — a hard line, and a National Glacier Inventory to prove it. That inventory is real and usable: the State scientific institute IANIGLA compiles the National Glacier Inventory, mapping the glaciers and periglacial bodies the law protects, so a community can often show, from public data, that a project's footprint or its water source sits on protected ground. The line has teeth — when a mining company and provinces challenged the law as

unconstitutional, the Supreme Court upheld it, and mega-projects on the high cordillera, such as the Pascua Lama gold project on the border, have been halted in part over glacier and water concerns. The Glacier Law is one of the clearest "closed ground" arguments in the country. And **Indigenous consultation** under ILO 169 (law 24.071) and Article 75(17) must precede a project on Indigenous territory; a consultation skipped or faked is a defect the courts can act on. The right is specific: consultation must be *prior* (before the decision, not after), *free* (without pressure), and *informed* (with real information about the impacts), conducted through the community's own legitimate institutions — and, for measures that would gravely affect them, aimed at consent. Argentina recognises the ethnic and cultural pre-existence of Indigenous peoples in Article 75(17) and registers hundreds of communities nationally, and the courts have suspended projects and acts where consultation was omitted. If your project touches an Indigenous territory, the community's own authorities lead, and the failure to consult them properly is often the single strongest legal defect available. Assert both where they apply — closed ground and denied consultation are among the cleanest cases there are. A third line worth checking is the **native-forests law (26.331)**, which requires each province to map and categorise its forests and bars the clearing of the most protected ones — a project that clears red- or yellow-category forest, or that proceeds where the province never did the mapping and public participation the law requires, is on defective ground. Like the glaciers, the forests are a national floor a province cannot simply waive.

Where to File and With Whom

Environmental amparos run before provincial and federal judges, and up to the **Supreme Court (CSJN)**, which has ordered cleanups and suspended permits. Get help early: public-interest law groups, the **Defensor del Pueblo** (which can bring an amparo itself), the assembly networks' lawyers, and university legal clinics have the experience and can advise on standing, the right action, and the risks before you file. A lawyer or Ombudsman contacted while objections are still live and evidence is fresh is worth far more than one contacted after the machinery arrives. When you approach a lawyer or a clinic, bring your timeline, your document index, and a one-page summary of the defect you believe is strongest; a well-organised community that has already done the documentation is far easier to take on, and far more likely to win, than one that arrives with only a grievance. The quality of your file, again, is the quality of your case.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, the Ombudsman, a journalist, a provincial legislator, an investor, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a mining authorisation was granted on a study that never assessed the town's water supply, after a public hearing whose objections went unanswered. That one fact becomes:

- **A legal argument:** the authorisation rests on a deficient study and a defective hearing, and the precautionary principle was ignored — grounds for an amparo and a precautionary measure.
- **A water argument:** the town's drinking and irrigation water is put at risk without assessment — the issue that unites a community and moves a plebiscite.
- **A political argument:** provincial officials approved a project that threatens their own constituents' water, exposing them to accountability and building the case for a ban.
- **A media argument:** a mine approved without studying the water it will consume or pollute — a clear, human story with a villain and a stake.
- **A financier-and-buyer argument:** a project approved on a defective process in a contested province is a legal and reputational risk to those who fund and buy from the company.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Argentina the water argument, tied to a specific town and a specific defect, is often the one that moves both the assembly and the province. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in a sworn statement and a claim made to the court can be spoken plainly at the assembly; consistency across audiences is itself persuasive.

Match the Argument to the Audience

The courts and the Ombudsman want the breach framed precisely against the specific rule — the EIA's deficiencies, the hearing defect, the precautionary principle, the Glacier Law, the provincial ban — with the documents and the timeline that prove it.

Provincial and municipal officials respond to their own community's clear voice and to legal and political risk — the ordinance, the ban campaign, the exposure of having approved a defective project.

Journalists need a specific, verified, human story with a hook: a named town, a threatened water source, a documented defect, an imminent decision.

International allies, financiers, and buyers respond to reputational and legal exposure — a contested project on a flawed process, tied to a named listed company.

The community itself needs to see that the fight is winnable and shared — the small wins, the growing assembly, the pressure mounting — so it lasts.

Learning to move fluently between these registers — the precise legal breach for the judge, the water for the town, the reputational risk for the financier, the human story for the reporter — is one of the most valuable skills a campaign can develop, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of approval, reaches officials and financiers your letters cannot, protects activists by making them visible, and can turn a local fight into a provincial or national cause. Argentina's press is combative and its public mobilised, and "No a la Mina" became a national phrase precisely because Esquel made its fight impossible to ignore.

Build the Story

Reporters need specifics: a named place and people, a dated and documented defect or harm, a clear stake, and a live decision or deadline. "A mine threatens our town" is not a story; "a mining company holds an authorisation to open a cyanide pit six kilometres from a town of forty thousand, approved on a study that never assessed the town's water, and the community votes on it next month" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — an elder, a mother, a *vecino autoconvocado* — and an independent expert.

Reach the Right Outlets

Work outward in rings. **Local and provincial press** first, where the story is felt and officials read it. Then **national outlets** — the major newspapers, broadcasters, and Argentina's strong online and investigative press — which carry political weight. Then, for a project touching a listed or foreign company or a globally resonant place (a glacier, Patagonia, an Indigenous territory), **international media and specialist environmental outlets**, which reach financiers and buyers. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **money**: a listed proponent depends on shareholders, lenders, and buyers, and coverage in international and financial outlets — and briefings to responsible-investment bodies — can reach a company where provincial politics cannot. It is worth learning the specific investigative and environmental journalists who cover extraction in Argentina and the region; a reporter who already understands mining, glaciers, and Indigenous rights needs less briefing and writes with more authority, and a single well-sourced investigative piece can do more than a dozen brief notices. Give such a reporter an exclusive on your strongest documented finding and you gain an ally, not just a mention.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the filing, the hearing, the new document, the assembly action, the ban campaign, the plebiscite — so there is always a next hook, and build your own record (a simple page, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild. And where activists have faced repression, weigh how and whom you expose: centre the collective and the documented facts rather than isolated individuals, coordinate with your legal and assembly leads, and never publish what you cannot stand behind. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you enter objections, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Objection During Environmental Review / at the Public Hearing

To: the provincial environment (or mining) authority **Subject:** Objection — [project], environmental-impact assessment [file no.]

As a person affected by [project] at [location], I object during the environmental-impact review and at the public hearing. My grounds, with evidence: (1) the environmental-impact study [omits / understates] [effect — e.g. the impact on the town's water supply]; (2) [the public hearing was not genuinely held / objections were not answered]; (3) [the project affects a glacier / a protected area / an Indigenous territory / violates provincial law]; (4) the precautionary principle (Law 25.675) requires caution given the risk. I request that the authorisation be DENIED, or that [strict conditions / a proper study] be required, and that this objection be recorded. [Attachments.]

8B. Request for Environmental Information (Law 25.831)

To: [the provincial environment / mining / water authority; the municipality] **Subject:** Request for public environmental information — [project]

Under the Law on Free Access to Public Environmental Information (25.831) and the right of petition, I request copies of: the environmental-impact study and its authorisation and conditions; the public-hearing record; [the mining concession]; [the water permit]; [any Indigenous consultation record]; and [the applicable provincial and municipal norms]. As a member of an affected community, I ask that these be provided within the legal term.

8C. Statement Asserting Rights and Closed Ground

To: the provincial authority [and the company] **Subject:** [Project] — environmental rights, closed ground, and consultation

[Project] threatens [the town's water / a glacier / a protected area] and proceeds [on the territory of [Indigenous community], through its legitimate authorities / in violation of provincial Law [no.]]. Under Article 41 of the Constitution and Law 25.675, we hold the right to a healthy environment and the protection of the precautionary principle; under the Glacier Law (26.639) [/ ILO 169 and Article 75(17)], [this ground is closed / our consultation is required]. These have not been respected. We require that all activity cease until they are, and reserve the right to bring an amparo with precautionary measures. [Signed by residents / the legitimate authorities.]

8D. Amparo Ambiental with Precautionary Measure (via counsel or the Ombudsman)

To: the competent judge, via counsel or the Defensor del Pueblo **Subject:** Amparo ambiental and precautionary measure — [project]

As [affected residents / an environmental association / an Indigenous community], we bring an amparo (Art. 43 of the Constitution; Law 25.675) with a precautionary measure against [the authority and the company], on the grounds that [the authorisation rests on a deficient study and a defective hearing / the project causes collective environmental damage / it sits on closed ground / consultation was denied / the precautionary principle was ignored]. We seek [the immediate suspension of the activity, the review and revocation of the authorisation, and measures to prevent and repair the harm]. [Grounds, timeline, technical readings, and maps attached.]

8E. Referral to the Defensor del Pueblo / Auditoría / Fiscalía

To: the Defensor del Pueblo [or the audit body / the prosecutor] **Subject:** Referral — [harm / irregularity / rights violation], [project], [location]

We bring to your attention [the failures and the harm] connected with [project]: [sourced facts — an authorisation granted on a deficient study, a hearing whose objections were ignored, a glacier or watershed overlap, officials who acted or failed to act, threats against community members]. We request that you [bring or support an environmental amparo / defend the affected community / audit the public decisions and funds / open an inquiry], and we attach the documentation.

8F. Letter to the Municipality or Provincial Legislature

To: [the Mayor / the council / a provincial legislator / the legislature] **Subject:** [An ordinance / a ban / a hearing] — [project]

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a threat to our water, a glacier overlap, a defective process]. Within your competence, we ask you to [pass a non-toxic / land-use ordinance / support a provincial ban on this class of mining / call a public hearing or plebiscite / address the provincial authorities]. [If true:] [#] residents and [#] organisations share this concern, and the matter carries legal and political risk. We welcome a meeting and can share our full evidence.

8G. Coalition Outreach (to a legal-aid group, the UAC, or an international ally)

To: [a public-interest law group / the Unión de Asambleas Ciudadanas / an international environmental organisation] **Subject:** [Project] — would you support our community's fight?

We are a community assembly [and Indigenous community] in [place] facing [project], which [one-line stake — e.g. "would open a cyanide gold mine that threatens our water, approved on a study that never assessed it"]. We are getting in touch because [your network has carried these fights across the country / your reach can carry this to those who fund and buy from the company]. We are not asking you to adopt our whole campaign — only to consider [taking or advising on a case / connecting us to nearby assemblies / amplifying our fight]. We have documented evidence and community backing, and can send a brief and arrange a call.

8H. Email to a Reporter (Provincial, National, or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the town / the water]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a mining company holds an authorisation to open a cyanide pit six kilometres from our town, granted on a study that never assessed our water"], and [a decision / hearing / vote] is due [date]. It is specific, verified, and it echoes Esquel. I can share the full file and connect you with affected residents and [an independent expert]. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the authorisation dates, the hearing record, and any comment or appeal deadlines. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and technical readings; and route them, where you can, through or with the assembly, the legitimate community authorities, your legal-aid partner or the Ombudsman, and your allies. The reply — or the silence — becomes part of your record, and in Argentina that record feeds the levers that matter most: the assembly, the amparo, the closed ground, the province, and the vote.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Find out if your province already bans it — today.** Check whether a provincial law bans this class of mining (as Chubut and Mendoza do). If it does, the project may be illegal outright, and your fight is enforcement, not persuasion.
- 2. Open an assembly — even a small one.** The single most Argentine move is to gather your neighbours into an open, regular meeting. It informs the town, shares the load, and is the engine everything else runs on. Start it this week.
- 3. Request the study and the hearing record.** One request under the environmental-information law (8B) forces out the EIA, the authorisation, and the hearing record — often revealing the missing water assessment, the ignored objection, or the closed-ground overlap that becomes your case.
- 4. Check for glaciers, protected areas, and water.** Establish whether the footprint sits on or drains a glacier or

periglacial area (barred by national law), a protected area, or a watershed. A single overlay map can prove a project is on closed ground.

5. File an amparo with a precautionary measure — or ask the Ombudsman to. The amparo (8D) is fast and, with a precautionary measure, can freeze the project quickly. The Defensor del Pueblo can bring it for you.

6. Tell the world. A threat to a town's water, a glacier, or Patagonia reaches the national and international press; a single accurate tip (8H) can turn a local fight into a cause and reach the company's financiers and buyers.

7. Push the municipality. A letter to the council (8F) asking for a non-toxic or land-use ordinance is cheap and can block a project locally while you build the provincial case.

Do only the first three and you will have checked the project's legality, started the engine that carries every other lever, and forced out the record that reveals its defect — the exact foundation Esquel built on. Then come back and read the rest. Even the shortest version has a spine: check the legality, start the assembly, force out the record. Everything else in this guide is an amplification of those three moves, and a community that does only them has already done more than most projects' opponents ever do.

WHEN THE SYSTEM IS TILTED

Argentina's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs through **federalism**: the provinces own their resources and decide, so a province that wants mining, oil, or lithium can push it as hard as Chubut resisted one — and several provincial economies depend on extraction. The national government promotes it too. The pressure is intensifying: lithium in the northern *puna* (Jujuy, Salta, Catamarca), unconventional oil and gas at Vaca Muerta in Neuquén, and new national incentive regimes for large investments all push extraction hard, and provincial economies that depend on the royalties defend it. This is the current against which many communities now organise — which makes the assembly, the provincial line, and the closed ground more important, not less. **Public hearings are often non-binding**, and a provincial authority can approve over the objections raised. **Provincial bans are fragile** — Law 5001 carries a "zonification" loophole, and it and Mendoza's 7722 have faced repeated repeal attempts. **Enforcement lags**, and **Indigenous consultation** is too often a formality. And in some mining towns, **protest has met repression**. Two further pressures are worth naming plainly. Activists have faced **criminalisation** — charges, prosecutions, and restraining measures aimed at leaders — which is designed to drain a campaign's time and nerve; meet it by keeping leadership collective, documenting everything, and drawing on legal-aid and the Ombudsman rather than letting it isolate anyone. And proponents sometimes wield the threat of **international arbitration** against the State, arguing a ban or a revocation breaches an investment treaty; that is a pressure on governments, not a reason a community should stand down — the environmental rights and the closed ground are law too, and a project stopped lawfully is stopped. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The organised assembly cannot be switched off. A town organised into a lasting assembly, linked to a national network, is the lever that beat Esquel's mine and forced the Chubutazo repeal — and no authority can approve away a mobilised community.

A ban stops a class of projects. Where you can win or defend a provincial ban, you stop not one mine but all of them — and communities have held these lines for two decades.

The amparo and precautionary principle reach the courts fast. A community can get a project frozen with a precautionary measure, and the Supreme Court has suspended permits on precautionary grounds.

Closed ground stays closed. The Glacier Law bars the high cordillera regardless of the province's wishes, and an overlap is provable on a map.

The press and the world cannot be switched off. A combative national press and international interest in Patagonia, the glaciers, and Indigenous rights reach past provincial politics to the company's financiers and buyers.

The Honest Frame

So the honest frame for Argentina is real but recurring. The assembly, the provincial ban, the amparo, the precautionary principle, direct democracy, the closed ground, and a free press give a community genuine — in places distinctive — power, as Esquel and the Chubutazo proved. But federalism lets pro-extraction provinces push hard, bans are fragile and attacked again and again, hearings are often non-binding, enforcement lags, and protest can meet repression. So diagnose the tilt honestly: lean on the assembly, the province, the courts, and the closed ground, not on a friendly authority; document every defect and harm; protect your people and report threats at once; treat a provincial ban as a line to be defended forever, not won once; and think in terms of the line held, delay, exposure, and a proponent worn down as much as an outright, permanent stop. In a province-backed fight, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being paid, pressured, or protected. Corruption changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. An **authorisation granted or a study waved through in the teeth of the evidence**, over strong documented objections and without addressing them, suggests more than error. A **public hearing staged as a formality**, its objections never answered; **officials with undisclosed interests** in the proponent; **permits issued at unusual speed**; **enforcement that never comes** despite obvious violations; and a **legislature that tries to convert a citizens' anti-mining initiative into a pro-mining law** — as happened in Chubut in 2014, when a legislator was photographed messaging a mining-company manager during the debate — all point the same way. And **threats or repression aimed at the assembly's leaders** are themselves a signature of something rotten. One anomaly may be incompetence; a pattern is capture. Corruption tends to leave its fingerprints in the sequence of events rather than in any single document — lay your timeline beside the official one and watch for approvals that cluster around a change of official or a company's arrival.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where capture reaches. A **provincial office, a staged hearing, or a single legislator** can be bought or pressured. But the Argentine system has bodies harder to capture and that a corrupt provincial arrangement cannot easily reach: the **federal courts and the Supreme Court**; the **Defensor del Pueblo**; the **national audit and prosecutorial bodies**; the **national floor of environmental law** the province cannot go below; the **UAC and the national press**; and international attention. Corruption thrives on darkness and on staying provincial; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora.

What to Do

Do not confront and tip off the captured official. Instead, **document the anomaly precisely** — the dates, the interests, the ignored objections, the missing inspections — and refer it, with evidence, to the bodies above (8E): the audit and prosecutorial bodies, the Ombudsman, the federal courts, and the press. Pair the referral with the amparo and the ban campaign, so the corruption and the harm are exposed together. Remember that exposure has its own momentum: an audit finding or a prosecutor's inquiry creates a record other bodies must reckon with, and a hearing shown to be staged collapses the process the authorisation stood on. And protect yourself above all — coordinate with your legal and assembly leads, involve the Ombudsman, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Organise, and Document

Pin down the project, the permit, and the stage (Step 1). Open the assembly and form the core, with the legitimate community authorities (Step 3). Begin the file — request the study, the authorisation, and the hearing record (Step 2 and What to Gather). And move fast on what will not wait: **object during the review and at the public hearing**, and check whether a **provincial ban** already makes the project illegal. Reach a legal-aid group or the Ombudsman now, before deadlines close. This early phase is cheap, and it sets up everything else.

Middle (Months 2-12): Escalate on Every Front

Grow the assembly and the coalition and show strength (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — an amparo with a precautionary measure, the precautionary principle, the closed ground (Step 4). Refer the officials and the process to the audit bodies and the Ombudsman, and any threats promptly (8E). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others: a filing is a headline, a headline is pressure, pressure moves an official, an official's document strengthens the filing. Do the cheap, time-sensitive things first, because a missed hearing or a lost deadline cannot be recovered.

Later (Months 6-48+): Sustain, Win the Line, and Redefine the Win

Sustain the assembly against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **municipal ordinance**, a **provincial ban**, a **plebiscite** — the Argentine victories that outlast a single project. And judge success honestly. Sometimes it is an outright, permanent stop — an authorisation revoked, a project abandoned, a provincial ban won. More often, in a province-backed fight, it is a project **stalled for years, shrunk, re-sited, saddled with conditions, or so delayed and exposed that the proponent walks away** — and a provincial line drawn that protects the next town too. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes. And keep sight of the compounding return: every provincial ban won, every plebiscite held, every amparo that suspends a project, every hearing exposed as a sham adds to a body of precedent and example that the next community — and the national movement — draws on. Esquel did not only save its own valley; it created a template, a law, and a network that dozens of towns have used since. Your fight, however local, is also a deposit in that common account.

The Shape of a Campaign

WEEKS 0-8	Identify Open the assembly Document Object at the hearing Get counsel
MONTHS 2-12	Grow the assembly Arguments Amparo + precautionary measure Referrals Media
MONTHS 6-48+	Sustain Protect people Win the ordinance / ban / plebiscite Redefine the win

FINAL ASSESSMENT

Argentina gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. A community can organise into a **lasting assembly** linked to a national movement — the engine that beat Esquel's mine. It can win or defend a **provincial ban** that stops a whole class of projects. It can freeze a project fast with an **amparo** and a **precautionary measure**, and lean on a **precautionary principle** written into national law and used by the Supreme Court. It stands on **closed ground** — the glaciers barred by national law, the protected areas, the Indigenous territories. It can take the question **directly to the people** through a plebiscite, as Esquel did. And it can summon **a combative press and international attention** on Patagonia, the glaciers, and Indigenous rights, reaching the financiers and buyers a company depends on.

The limits are just as real. Federalism lets pro-extraction provinces and the national government push hard; provincial bans are fragile and attacked again and again; public hearings are often non-binding; enforcement lags; Indigenous consultation is too often a formality; and protest has met repression in some mining towns. No guide should pretend otherwise. The twenty-year fight to defend Law 5001, and the repression at Andalgala and Famatina, are the condition of this fight, not its exception.

So the realistic promise is this: **organise the assembly early, document every defect and harm, use the amparo and the precautionary principle, hold the closed ground, win and defend the provincial line, take the question to the people, and reach the world — and run all of it together, protecting your people above all.** Do that, and even against a province-backed project you can force delay, exposure, conditions, a line held, and a proponent worn down — and sometimes an outright stop. Do it as Esquel did, over years and across a whole province, with the assembly at the centre and public-interest lawyers, independent experts, and the national network at your side, and you

can win a victory that protects not only your own town's water but the next community's too.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, numbers, the assembly, and the fact that you are defending your home while it is merely pursuing a return. Play to that. Keep the file, keep the assembly, keep the record and the coverage alive, protect your people, and treat every delay, every disclosure, every referral, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Argentina's history proves they work: a small Patagonian town beat a multinational and wrote its refusal into law, and a whole province rose to defend that law and won. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable — a town at the ballot box, a whole province in the streets. The path is known, the tools are proven, and the only thing that has ever been missing in the fights that were lost was not the law but the organisation and the endurance to use it. So can yours.